

ORIGINAL

FEDERAL MARITIME COMMISSION

FILED

APR 04 2017

Federal Maritime Commission
Office of the Secretary

ADEBISI A. ADENARIWO

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Claimant,

*

v.

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Informal Docket

BDP INTERNATIONAL, ZIM
INTEGRATED SHIPPING, LTD. AND
ITS AGENT (LANSAL) ET AL.

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No. 1921(I)

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Respondents

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**MOTION TO RECONSIDER FINAL ORDER ON REMAND FOR ATTORNEY'S
FEES**

CLAIMANT Adebisi A. Adenariwo, by and through his counsel, Christopher L.

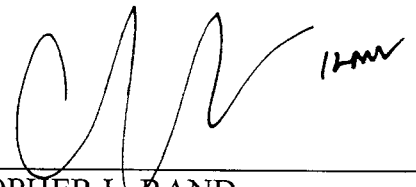
Rand and Abramson and Rand, LLC hereby files a Motion to Reconsider Final Order on
Remand for Attorney's Fees, and in support states as follows:

1. On or about February 14, 2017, the Federal Maritime Commission (hereinafter "Commission") issued a Final Order on Remand in which it ordered that Zim Integrated Shipping LTD, must pay Claimant reparations in the amount of \$50,000 and interest in the amount of \$875.52, totaling \$50,875.52.
2. Pursuant to 46 U.S.C. § 41305(e), "in an action brought under section 41301, the prevailing party may be awarded reasonable attorney fees."
3. The Federal Maritime Commission received a Notice of Appearance of Abramson and Rand, LLC and Christopher L. Rand on behalf of Claimant on or about August 17, 2016 along with Claimant's timely filed brief.

4. Claimant has incurred, to date, \$21,092.50 in attorney's fees for defending this matter before the Commission. The undersigned believes this request for Twenty One Thousand Ninety-Two Dollars and Fifty Cents is reasonable based on his hourly rate of \$295.00 per hour and the experience of more than twenty years of practice. *See Invoices, attached hereto as Exhibit A and B.*

WHEREFORE, Claimant, Adebisi A. Adenariwo, hereby requests that the Commission:

- A. RECONSIDER its Final Order entered February 14, 2017;
- B. GRANT Claimant reasonable counsel fees and costs for defending this action;
- C. ORDER Respondent Zim to pay to the Claimant's counsel the sum of \$21,092.50 toward Claimant's reasonable counsel fees and costs;
- D. GRANT such other and further relief as the nature of his cause so requires.

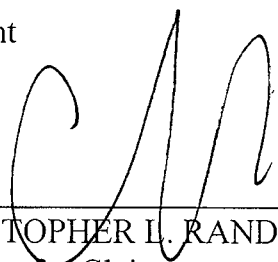
A handwritten signature in black ink, appearing to read 'CR' followed by a flourish and the initials 'LMV'.

CHRISTOPHER L. RAND
Abramson and Rand, LLC
6851 Oak Hall Lane, Ste. 305
Columbia, Maryland 21045
(410) 730-7733
Attorney for Claimant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 23rd March 2017, that a copy of the foregoing Motion to Reconsider Final Order on Remand for Attorney's Fees was mailed first class, postage pre-paid to:

Wayne Rohde
Cozen O'Connor
1627 I Street, NW
Washington, DC 20006-4007
Attorney for Zim Integrated Shipping, Ltd. and its Agent

 *12/11/17*

CHRISTOPHER L. RAND
Attorney for Claimant



INVOICE

Invoice # 13
Date: 12/07/2016
Due Upon Receipt

Abramson & Rand, LLC

6851 Oak Hall Lane, Suite 305
Columbia, Maryland 21045

Tony Adenariwo
15618 Plaid Drive
Laurel, MD 20707

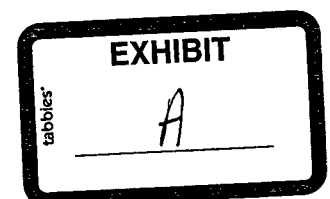
M0303

Maritime

Date	Attorney	Notes	Quantity	Rate	Total
11/01/2016	CLR	Balance brought forward	1.00	\$2,704.00	\$2,704.00
11/08/2016	LV	Call to FMC	0.30	\$225.00	\$67.50
11/08/2016	LV	Email to/from Client	0.10	\$225.00	\$22.50
11/09/2016	LV	Email to/from Client	0.10	\$225.00	\$22.50
11/09/2016	CLR	Call to Court	0.20	\$295.00	\$59.00
11/10/2016	LV	Email to/from Client	0.10	\$225.00	\$22.50

Time Keeper	Quantity	Rate	Total
Christopher Rand	1.0	\$2,704.00	\$2,704.00
Christopher Rand	0.2	\$295.00	\$59.00
Lauren Vint	0.6	\$225.00	\$135.00
		Subtotal	\$2,898.00

Interest



Type	Date	Description	Total
Interest	01/07/2017	Interest on overdue invoice #13	\$1.19
Interest	02/06/2017	Interest on overdue invoice #13	\$1.19
Interest	03/08/2017	Interest on overdue invoice #13	\$1.19
Interest Subtotal			\$3.57
Subtotal			\$2,898.00
Interest			\$3.57
Total			\$2,901.57

Detailed Statement of Account

Other Invoices

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
500	04/05/2017	\$697.00	\$0.00	\$697.00

Current Invoice

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
13	12/07/2016	\$2,901.57	\$0.00	\$2,901.57
Outstanding Balance				\$3,598.57
Total Amount Outstanding				\$3,598.57

Please make all amounts payable to: Abramson & Rand, LLC

Payment is due upon receipt. 0.5% simple annual interest will be charged every 30 days.



INVOICE

Abramson & Rand, LLC

6851 Oak Hall Lane, Suite 305
Columbia, Maryland 21045

Invoice # 500
Date: 03/06/2017
Due On: 04/05/2017

Tony Adenariwo
15618 Plaid Drive
Laurel, MD 20707

M0303

Maritime

Date	Attorney	Notes	Quantity	Rate	Total
02/14/2017	CLR	Review Opinion and review law on damages. Email to client. Meet with LV regarding interest. Telephone call with JMA.	1.30	\$295.00	\$383.50
02/15/2017	CLR	Phone call to/from Client: Review email from Wayne Rohde.	0.30	\$295.00	\$88.50
02/23/2017	LV	Phone call to/from Client	0.10	\$225.00	\$22.50
02/27/2017	LV	Phone call to/from Client: Meet with CLR. Discuss Motion.	0.90	\$225.00	\$202.50

Time Keeper	Quantity	Rate	Total
Christopher Rand	1.6	\$295.00	\$472.00
Lauren Vint	1.0	\$225.00	\$225.00
		Total	\$697.00

Detailed Statement of Account

Other Invoices

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
13	12/07/2016	\$2,898.00	\$0.00	\$2,898.00

Interest On Other Invoices

Original Invoice	Due On	Amount Due	Payments Received	Balance Due
13	02/06/2017	\$1.19	\$0.00	\$1.19
13	03/08/2017	\$1.19	\$0.00	\$1.19
13	04/07/2017	\$1.19	\$0.00	\$1.19

Current Invoice

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
500	04/05/2017	\$697.00	\$0.00	\$697.00

Outstanding Balance \$3,598.57
Total Amount Outstanding \$3,598.57

Please make all amounts payable to: Abramson & Rand, LLC

Please pay within 30 days. 0.5% simple annual interest will be charged every 30 days.



INVOICE

Invoice # 674
Date: 03/23/2017
Due On: 04/22/2017

Abramson & Rand, LLC

6851 Oak Hall Lane, Suite 305
Columbia, Maryland 21045

Tony Adenariwo
15618 Plaid Drive
Laurel, MD 20707

M0303

Maritime

Date	Attorney	Notes	Quantity	Rate	Total
03/21/2017	CLR	Review motion; telephone call to client.	0.50	\$295.00	\$147.50

Time Keeper	Quantity	Rate	Total
Christopher Rand	0.5	\$295.00	\$147.50
Total			\$147.50

Detailed Statement of Account

Other Invoices

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
13	12/07/2016	\$2,898.00	\$0.00	\$2,898.00
500	04/05/2017	\$697.00	\$0.00	\$697.00

Interest On Other Invoices

Original Invoice	Due On	Amount Due	Payments Received	Balance Due
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13	02/06/2017	\$1.19	\$0.00	\$1.19
13	03/08/2017	\$1.19	\$0.00	\$1.19
13	04/07/2017	\$1.19	\$0.00	\$1.19

Current Invoice

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
674	04/22/2017	\$147.50	\$0.00	\$147.50
Outstanding Balance				\$3,746.07
Total Amount Outstanding				\$3,746.07

Please make all amounts payable to: Abramson & Rand, LLC

Please pay within 30 days. 0.5% simple annual interest will be charged every 30 days.

Bushell Law, P.A.
1451 West Cypress Creek Road
Suite 300
Fort Lauderdale, FL 33309
Telephone: 954-666-0220

Adebisi Adenariwo
15618 Plaid Drive
Laurel, MD 20707

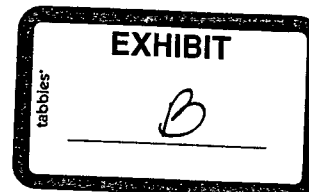
3/31/2016
Invoice No. 180

Client Number: 1193 Adebisi Adenariwo
Matter Number 1291 Adenariwo v. Federal Maritime Commission
For Services Rendered Through 3/31/2016.

Cost Detail

<u>Date</u>	<u>Description</u>	<u>Amount</u>	<u>Check No.</u>
12/5/2014	Fedex for shipping application to court	\$39.50	
12/5/2014	Fedex for receiving certificate of good standing from Florida bar.	\$23.24	
12/9/2014	Clerk of Court -- fee for DC Circuit admission	\$226.00	
12/10/2014	Fedex for resending application to court	\$25.71	
8/24/2015	Travel Expenses	\$309.20	
9/20/2015	Hotel and incidentals	\$250.00	
	Total Costs	\$873.65	

Continued On Next Page



Client Number: 1193
Matter Number: 1291

3/31/2016
Page: 2

Payment Detail

<u>Date</u>	<u>Description</u>	<u>Amount</u>
12/1/2014	Fees earned from initial payment	(\$1,000.00)
12/3/2014	Transfer from trust for fees earned.	(\$1,000.00)
12/8/2014	Transfer from retainer for fees and expenses.	(\$437.26)
12/8/2014	Transfer from retainer for fees and expenses.	(\$62.74)
12/11/2014	Transfer from trust for fees and costs.	(\$748.29)
12/11/2014	Transfer from trust for fees and costs.	(\$251.71)
12/30/2014	Transfer from trust for fees	(\$1,000.00)
1/6/2015	Transfer from trust for fees earned.	(\$1,500.00)
1/21/2015	Check toward flat fee	(\$2,000.00)
1/30/2015	Check toward flat fee	(\$2,000.00)
1/30/2015	Check toward flat fee	(\$2,500.00)
3/3/2015	Check toward flat fee	(\$2,500.00)
8/24/2015	Transfer from trust for airfare	(\$309.20)
9/2/2015	Credit card payment for oral argument	(\$900.00)
9/20/2015	Credit card payment for oral argument	(\$700.00)
9/20/2015	Credit card payment for oral argument	(\$250.00)
9/20/2015	Transfer from trust	(\$190.00)
3/21/2016	Transfer balance from trust	(\$0.80)

Total Payments Received: (\$17,350.00)

Prior Balance:	\$17,350.00	Last Payment: 3/21/2016
Payments Received:	(\$17,350.00)	
Current Fees:	\$0.00	
Write Off of Fees:	(\$873.65)	
Advanced Costs:	\$873.65	
TOTAL AMOUNT DUE:	\$0.00	

Thank You for Letting Us Serve You.
Payment Due Upon Receipt.

Continued On Next Page

Client Number: 1193
Matter Number: 1291

3/31/2016
Page: 3

TRUST ACTIVITY RECAP

<u>Date</u>	<u>Description</u>	<u>Deposit</u>	<u>Withdrawal</u>	<u>Balance</u>
				\$0.00
12/1/2014	Deposit of 1/3 of flat fee	\$5,000.00		\$5,000.00
12/3/2014	Transfer for fees		\$1,000.00	\$4,000.00
	Our Check: 0 Payee: Trust Deposit			
12/8/2014	Transfer for fees and expenses		\$500.00	\$3,500.00
	Our Check: 0 Payee: Trust Deposit			
12/11/2014	Transfer for fees		\$1,000.00	\$2,500.00
	Our Check: 0 Payee: Trust Deposit			
12/30/2014	Transfer for fees earned		\$1,000.00	\$1,500.00
	Our Check: 0 Payee: Trust Deposit			
1/6/2015	Transfer for fees earned		\$1,500.00	\$0.00
	Our Check: 0 Payee: Trust Deposit			
8/21/2015	Deposit for reservations	\$500.00		\$500.00
8/24/2015	Withdraw for airline tickets	(\$309.20)		\$190.80
9/21/2015	Withdraw for travel expenses	(\$190.00)		\$0.80
3/21/2016	Transfer balance for reconciliation	(\$0.80)		\$0.00